SAM Assistant - Terms of Sale

SAM Assistant (Pty) Ltd
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These Terms of Sale apply to every purchase of a SAM unit from SAM Assistant (Pty) Ltd ("SAM Assistant", "we", "us"). By paying a quote or invoice, the customer ("Customer", "you") agrees to these terms.

1. The product

1.1. SAM is a small computer (a Raspberry Pi with an SSD, case and power supply) with the SAM software installed. It runs in the Customer's home or office and is used through the Customer's own Telegram app.

1.2. The purchase price covers the hardware, the right to use the SAM software on that unit, setup help, one month of support and the software updates described in sections 5 and 6. Exactly what is included is stated on the quote and invoice.

1.3. **Claude account.** To answer the Customer, SAM uses Claude, an AI service of Anthropic, on the Customer's own Claude account. The Customer opens and pays for that account directly with Anthropic. It is not part of the purchase price, and SAM Assistant cannot refund it. Anthropic's own terms and prices apply, and Anthropic may change them.

1.4. Other services the Customer connects to SAM (for example Telegram, Gmail, Google Calendar) are third-party services under their own terms. SAM Assistant does not control their availability or changes.

2. Quotes, prices and payment

2.1. A quote is valid for 14 days from its date, unless the quote states otherwise, and subject to stock availability.

2.2. SAM Assistant is not registered for VAT. Prices are final prices; no VAT is charged.

2.3. Payment is due in full before delivery, unless the quote or invoice states another payment arrangement. Please confirm stock availability with us before paying.

2.4. Use the quote or invoice number as the payment reference and send the proof of payment on WhatsApp or Telegram.

2.5. Ownership of the unit passes to the Customer once payment is received in full. Risk passes on delivery.

3. Delivery and setup

3.1. Delivery within South Africa as stated on the quote or invoice. Delivery dates are estimates.

3.2. Before delivery or the setup visit the Customer needs: a working internet connection, Telegram installed on their phone, and a Claude account (see 1.3).

3.3. Setup help is included as stated on the quote or invoice (on site or remote).

4. Money-back guarantee (limited-time offer)

4.1. **The money-back guarantee is a limited-time offer. It applies only if the Customer's quote AND invoice both state it**, including the guarantee period. If the quote and invoice do not state it, this section does not apply. Statutory rights under section 7 always apply.

4.2. **Period.** The Customer may ask for their money back within 30 days of delivery of the unit, if they are not happy with SAM for any reason.

4.3. **How.** The Customer tells us within that period, in writing (WhatsApp, Telegram or email), that they want to return the unit. We confirm return instructions.

4.4. **Condition.** The unit must be returned complete (unit, power supply, cables and original packaging), undamaged apart from normal handling, and not opened or modified.

4.5. **Return cost.** The Customer pays the courier cost to return the unit to Cape Town.

4.6. **Refund.** After we receive and check the unit, we refund the purchase price shown on the invoice by EFT within 10 business days. Delivery charges already paid are not refunded. Payments the Customer made to third parties (Claude account, Telegram, other services) are not refunded by us.

4.7. **Data.** Before returning the unit, the Customer should export anything they want to keep. We wipe the SSD on receipt; we do not read the Customer's data.

4.8. One refund per customer; the guarantee does not transfer to a later purchase or another person.

5. Software updates

5.1. Security updates and bug fixes are free for as long as SAM Assistant sells and supports the SAM product.

5.2. New features (major feature updates) released in the first 12 months after purchase are free. After that, we may charge for major feature updates. The price is communicated before the Customer decides; the Customer is never obliged to buy one and may keep using the installed version.

5.3. Updates arrive over the internet. SAM asks the owner before installing ("Yes, install now"). The Customer keeps the unit powered and online to receive them.

5.4. Updates do not extend the warranty and do not guarantee that the software is free of all defects or security risks.

6. Support

6.1. One month of support is included, starting on delivery. Support is by Telegram chat via @Contact_SAM_bot, the preferred and fastest channel, and also by WhatsApp on +27 81 899 6134.

6.2. After that, support is available under a paid support plan or per incident, at the prices published at the time.

6.3. **We never log in to the Customer's unit.** Support works through the chat, photos of the screen and short commands the Customer types. We have no access to the Customer's notes, email, calendar or messages.

6.4. Through the support chat we receive only the Customer's Telegram name, username and user ID and the messages the Customer sends there. We use these only to answer support questions and to announce software updates and important product notices, never for marketing without separate consent. The Customer can stop at any time by blocking or deleting the chat.

6.5. Custom work (new use cases, changes to how SAM works beyond its settings) is quoted separately.

7. Warranty and statutory rights

7.1. The unit carries a 12-month warranty from delivery against defects in materials, workmanship and the supplied software that stop it working substantially as described.

7.2. For a valid claim we repair, replace the faulty part or unit, or fix the software, at our choice.

7.3. The warranty does not cover damage from misuse, accidents, liquids, power surges or unstable power, unauthorised opening, repair or modification, or third-party hardware, software and services.

7.4. **Claims and shipping.** Contact us first for return instructions. The Customer sends the unit, safely packed, to us in Cape Town at their own cost and risk. After warranty work we return it to the Customer's original delivery address in South Africa at our cost. If the fault is not covered, we quote assessment, repair and shipping before doing any chargeable work.

7.5. Nothing in these terms limits the Customer's rights under the Consumer Protection Act 68 of 2008 or other law that cannot be excluded, including the right to return defective goods within six months of delivery.

8. Your data and privacy

8.1. The Customer's notes, lists and files are stored on the SAM unit in the Customer's home or office, not in a cloud database run by SAM Assistant.

8.2. To answer a request, SAM sends the relevant request and content to Claude (Anthropic) on the Customer's own account, and uses the third-party services the Customer connected (for example Gmail, Google Calendar, Telegram). Those services process data under their own terms and privacy policies.

8.3. SAM Assistant does not collect, see or store the Customer's data, other than what the Customer sends us in the support chat (6.4).

8.4. The Customer is responsible for backups of their own data and for using SAM lawfully, including the personal information of others (POPIA).

9. Customer responsibilities

9.1. Use SAM according to the owner manual and our instructions.

9.2. Keep the Claude account, Telegram and other connected services active and paid where needed.

9.3. Do not copy, resell, reverse engineer or redistribute the SAM software, or circumvent its protection, except as the law allows.

9.4. Review what SAM prepares before approving it. SAM is an assistant: emails, invoices, reminders and other actions approved by the Customer remain the Customer's responsibility.

10. Limitation of liability

10.1. As far as the law allows, SAM Assistant is not liable for indirect or consequential loss, loss of profit, business or data, or for failures or changes of third-party services (Anthropic, Telegram, Google, internet providers).

10.2. As far as the law allows, our total liability is limited to the purchase price paid for the unit.

10.3. Nothing in these terms excludes liability that the law does not allow to be excluded.

11. General

11.1. These terms, with the quote and invoice, are the whole agreement. If the quote or invoice differs from these terms, the quote or invoice applies for that sale.

11.2. We may change these terms for future sales. Changes do not take away rights already given to a Customer.

11.3. If a clause is unenforceable, the rest stays in force.

11.4. South African law applies.